

BNS 2023

Bharatiya Nyaya Sanhita, 2023

Bharatiya Nyaya Sanhita (BNS), 2023

User Query :

Someone created a fake Instagram account using my name, photographs and other profile details. The person is messaging my friends and relatives while pretending to be me and asking them for money because of a supposed emergency. Two of my friends have already transferred money to the account mentioned in those messages. What legal provisions may apply?

Job Id. :

qwen3-30b/Scenario 2/Bharatiya Nyaya Sanhita (BNS), 2023

Prepared by :

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Date :

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AI-Powered Legal Intelligence Platform

APPLICABLE SECTIONS

Section 318 **(4) — Cheating and dishonestly inducing delivery of property**

Friends were deceived into transferring money.

Section 319 **— Cheating by personation**

The offender pretended to be the victim.

INTERPRETATION & LEGAL ANALYSIS

AI-generated legal interpretation

1 The facts fit both cheating involving delivery of property and cheating by personation.

✓ **STRENGTHS & RIGHTS**

1 Actual transfers make the property-inducement element concrete.

✗ **RISKS & OBLIGATIONS**

1 Avoid invented 'economic offence' or old IPC section numbers presented as BNS provisions.

PROCEDURAL NOTES & COMPLIANCE STEPS

Actionable steps for compliance and grievance redressal

COMPLIANCE STEPS

1. BNS addresses the substantive fraud; digital proof is addressed separately under the BSA.

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